

25AVCV00792 25AVCV00792

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00792 Hearing Date: July 9, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ALLY FINANCIAL LEASE TRUST,

Plaintiff,

v.

ROZA HARUTYUNYAN DBA RH AUTO SOLUTIONS, et al.,

Defendants.

Case Number 25AVCV00792

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 9, 2026

Dept. A-14

Judge William H. Forman

I. Background

This action arises from a wrongful detainment and/or possession of Plaintiff Ally Financial Lease Trust's ("Plaintiff") 2023 RAM 1500 motor vehicle, VIN No. 1C6SRFU94PN504503, that was assigned to Plaintiff by registered owner Old Sicily Pizza, who had transferred the vehicle to Defendant Roza Harutyunyan's body shop, RH Auto Solutions for repairs and storage before the commencement of this action. The vehicle currently remains in the body shop.

On June 23, 2025, Plaintiff filed a Complaint against Defendants Roza Harutyunyan, dba RH Auto Solutions, California Department of Motor Vehicles, and Does 1 through 10, inclusive, alleging four causes of action: (1) Claim and Delivery of Personal Property, for Pre-Trial Writ of Possession, and Order Directing Transfer of Personal Property and Restraining Order; (2) Conversion; (3) Quiet Title; and (4) Declaratory Relief.

On October 21, 2025, Defendant Roza Harutyunyan ("Defendant") filed her Answer, where she selected "Defendant admits that all of the statements of the complaint or cross-complaint are true EXCEPT:" but did not expand further or attach exhibits.

On May 14, 2026, Plaintiff filed two motions to compel:

- Motion to Compel Defendant's Responses to Requests for Production of Documents (Set One), and
- Motion to Compel Defendant's Responses to Requests for Admissions (Set One).

No Opposition has been filed.

On June 5, 2026, Defendant filed a substitution of attorney designating Dennis P. Wilson as her new legal representative. The Court notes that Mr. Wilson had previously appeared on Defendant's behalf at a Case Management Conference on February 9, 2026.

II. Legal Standard

Standard for Compelling Responses to Requests for Production ("RFP") – Code of Civil Procedure section 2031.300 provides that a party may bring a motion to compel responses to a request for production of documents, where the responding party failed to serve a timely response. Unless otherwise agreed, the responding party is required to serve response within 30 days after service of the discovery demand for production documents. (Code Civ. Proc, § 2031.260, subd. (a).) If the responding party fails to serve a timely response, the party "waives any objection to the demand, including one based on privilege or on the protection for work product . . ." (Code Civ. Proc., § 2031.300, subd. (a).) The requesting party need not demonstrate "good cause to compel responses, nor that it satisfied the "meet and confer" requirement. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 143 Cal.App.4th 390, 404.)

Standard for Deeming Matters Admitted – "Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who

have appeared”(Code Civ. Proc., § 2033.250, subd. (a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) Unlike a motion to compel further discovery responses, a motion to deem RFA admitted does not have any meet and confer requirements.

III. Discussion

Requests for Production (“RFPs”) & Requests for Admissions (“RFAs”)

Plaintiff propounded Defendant with the discovery motions initially by mail with the United States Postal Service on November 20, 2025. (Krugliak Decl., ¶ 2, Exh. A.) After not receiving a response by the statutory deadline, Plaintiff’s counsel sent a meet and confer letter to opposing counsel on January 6, 2026. (Krugliak Decl., ¶ 4, Exh. B.) On February 9, 2026, a case management conference was held, during which time Mr. Krugliak conferred with opposing counsel regarding the discovery requests. (Krugliak Decl., ¶ 5.) Plaintiff “re-propounded” the same discovery motions on Defendant on March 10, 2026, as a courtesy to the newly appointed opposing counsel. (Krugliak Decl., ¶ 6, Exh. C.) As of the filing of this motion, verified responses have not been received, even after counsel sent another meet and confer letter on April 14, 2026. (Krugliak Decl., ¶¶ 7-8, Exh. D.)

Defendant has not filed an opposition to this motion.

First, the Court finds that Plaintiff improperly sought a Motion to Compel Responses to Request for Admissions, Set One, because pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the proper mechanism is an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted (Motion to Deem Requests for Admissions Admitted). Accordingly, the Court denies Plaintiff’s Motion as to the RFAs.

Second, as to the RFPs, due to Defendant’s lack of verified responses and failure to file an opposition providing justification, the Court grants Plaintiff’s Motion as to the RFPs.

Accordingly, the Court GRANTS the Motion to Compel RFP Responses under Code of Civil Procedure section 2031.300 and orders Defendant to serve verified responses without objections within 10 days of notice of the court order. The Court **DENIES** the Motion to Compel RFAs Responses.

IV. Sanctions

Plaintiff requests sanctions against Defendant and/or her counsel in the amount of \$550.00 for this motion. Counsel bills at a rate of \$225/hour and states he spent 2 hours preparing this motion. (Krugliak Decl., ¶ 9.)

"Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2031.300, subd. (c).)

Defendant has not filed an opposition or presented substantial justification or other relevant circumstances for failing to respond to Plaintiff's discovery requests that would make the imposition of sanctions unjust.

However, the Court finds 2 hours for preparing a simple discovery motion to be excessive, especially because the Motion to Compel Responses to Requests for Admissions was denied as improper, and reduces to 1 hour for this motion.

Accordingly, the Court imposes a sanction of \$275.00 against Defendant and/or her counsel pursuant to Code of Civil Procedure section 2031.300, subdivision (c).

V. Conclusion

Plaintiff Ally Financial Lease Trust's Motion to Compel Defendant's Responses to Requests for Production of Documents (Set One) is GRANTED.

Plaintiff Ally Financial Lease Trust's Motion to Compel Defendant's Responses to Requests for Admissions (Set One) is DENIED.

The Court imposes a sanction of \$275.00 against Defendant and/or her counsel pursuant to Code of Civil Procedure section 2031.300, subdivision (c).